

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
Raul Batista,: Index Number:
: Date Purchased:
: Date Filed:

Plaintiff

: SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Charles Morales, Shield 28876 of the BSND :
Command, Detective Essence Jackson, Shield 2268 of the :
BSND Command, Detective Eddie Martins, Shield 5731 of :
the BSND Command and New York City Police Officers :
John Doe,: Plaintiff's residence is:
: 350 East 143 Street
: Bronx, NY 10454

Defendants

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in Kings County.

Dated: December 7, 2018
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Charles Morales, Shield 28876 of the BSND Command

Detective Essence Jackson, Shield 2268 of the BSND Command

Detective Eddie Martins, Shield 5731 of the BSND Command

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Raul Batista,	:	
	:	
Plaintiff,	:	
	:	
	:	VERIFIED COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Charles Morales, Shield 28876 of the BSND	:	
Command, Detective Essence Jackson, Shield 2268 of the	:	
BSND Command, Detective Eddie Martins, Shield 5731 of	:	
the BSND Command and New York City Police Officers	:	
John Doe,	:	
	:	
Defendants.	:	
-----X		

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq. for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Raul Batista, (hereinafter referred to as "BATISTA") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Charles Morales, Shield 28876 of the BSND Command (hereinafter referred to as "MORALES") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Detective Essence Jackson, Shield 2268 of the BSND Command (hereinafter referred to as "JACKSON") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Detective Eddie Martins, Shield 5731 of the BSND Command (hereinafter referred to as "MARTINS") was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, those officers involved in the arrest of BATISTA (hereinafter referred to as "DOES") were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
8. On or before about December 1, 2017 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. On or about January 31, 2017 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
10. That on or about May 23, 2017 at approximately 5:30PM in the vicinity of Avenue V and Stillwell Avenue, Brooklyn, NY Plaintiff was driving towards his bank when he stopped by MORALES, JACKSON, MARTINS and DOES.

11. That at no time prior to the stop of Plaintiff's vehicle had he violated any New York State traffic rules or regulations.

12. That MORALES, JACKSON, MARTINS and DOES ordered Plaintiff to step out from his vehicle and searched the car without any permission or authority.

13. That Plaintiff was handcuffed and arrested.

14. That at no time did Plaintiff possess a controlled substance in his car or on his person.

15. That at no time had Plaintiff engaged in any illegal or unlawful activity.

16. That after Plaintiff was arrested he was transported to the 60 precinct.

17. That after being taken to the 60 precinct, Plaintiff was held in a cell with other males for several hours.

18. That while Plaintiff was then held inside of the cell at the local police precinct for several hours where he was denied access to water and bathrooms.

19. That while Plaintiff was then held at the 60 precinct, he was subjected to a strip search and that nothing of an illegal nature was recovered.

20. That after being held for several hours at the 60 precinct, Plaintiff was removed to Kings County Central Booking located at 120 Schermerhorn Street, Brooklyn, New York.

21. That while at Kings County Central Booking, Plaintiff was held in a cell with other males for several hours.

22. That while at New York County Central Booking, Plaintiff was held in a cell with no access to water or a working bathroom.

23. That on or about May 25, 2017, Plaintiff was arraigned on docket 2017KN029497 wherein he was charged with Criminal Possession of a Controlled Substance in the Third

Degree, Criminal possession of a Controlled Substance in the Seventh Degree and Failure to Give Required Signal for Turning.

24. At Plaintiff's arraignment, Plaintiff was released into the custody of the Supervised Release Program and ordered to adhere to all of the rules and requirements of that program.

25. That on and between May 25, 2017 and November 24, 2017, Plaintiff adhered to all of the rules and regulations of the Supervised Release Program.

26. That on and between May 25, 2017 and November 24, 2017, Plaintiff made several court appearances until the case was dismissed upon application of the Kings County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

29. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

30. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

31. That as a result of the Defendants actions, Plaintiff has been unable to sleep.

32. That as a result of the Defendants actions, Plaintiff was forced to miss multiple days of work.

33. That as a result of the Defendants actions, Plaintiff was forced to comply with the Supervised Release Program.

34. That as a result of the Defendants actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

37. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable.

42. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

43. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. At all times pertinent hereto, MORALES, JACKSON, MARTINS and DOES were acting within the scope of his employment as an officer of the New York City Police Department and City of New York.

46. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MORALES, JACKSON, MARTINS and DOES committed within the scope of his employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT

47. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. The City of New York and New York City Police Department's failure to provide adequate training and supervision to MORALES, JACKSON, MARTINS and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

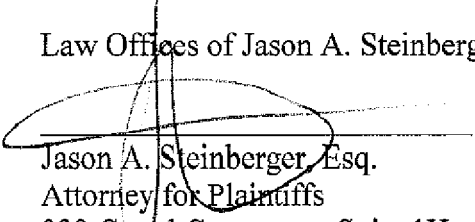
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

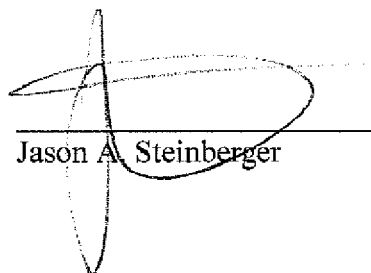


Jason A. Steinberger Esq.
Attorney for Plaintiffs
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(646) 256-1007

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 7, 2018



Jason A. Steinberger